

IN THE SUPREME COURT OF THE DEMOCRATIC SOCIALIST REPUBLIC
OF SRI LANKA

*In the matter of an Appeal in terms of Section 5(1) of the
High Court of the Provinces (Special Provisions) Act No.
10 of 1996*

Mesthri Tilvin Silva
No.100, New Parliament Road,
Pelawatta, Battaramulla.

SC/CHC/Appeal/15/2019
HC (CIVIL) 26/2008/IP

PLAINTIFF

Vs.

Wimal Weerawansa
No.21/1, Ashoka Mawatha,
Jayanthipura, Battaramulla.

And

No.18, Rodney Place,
Cotta Road, Borella,
Colombo 08.

DEFENDANT

AND NOW BETWEEN

Wimal Weerawansa
No.21/1, Ashoka Mawatha,
Jayanthipura, Battaramulla.

And

No.18, Rodney Place,
Cotta Road, Borella,
Colombo 08.

DEFENDANT-APPELLANT

Vs.

Mesthri Tilvin Silva
No.100, New Parliament Road,
Pelawatta, Battaramulla.

PLAINTIFF-RESPONDENT

Mesthri Tilvin Silva v Wimal Weerawansa
Case No. SC/CHC/15/2019

Before: Janak De Silva, J.
Dr Sobhitha Rajakaruna, J.
M. Sampath K.B. Wijeratne J.

Counsel: Nishan S. Premathiratne with Sidath Gajanayake, Manith Dasanayake, Kaushalya Wickramanayake and Gamindu Karunasena for the Defendant-Appellant.
Saliya Pieris, PC with Anjana Rathnasiri and Dinithi Jayasinghe for the Plaintiff-Respondents.

Written Submissions: Defendant-Appellant - 27 August 2025, 10 November 2025
Plaintiff-Respondent -29 September 2025, 10 November 2025

Argued on: 07 October 2025

Decided on: 09 July 2026

Judgement

Dr Sobhitha Rajakaruna J.

The Plaintiff-Respondent ('Plaintiff') instituted this action against the Defendant-Appellant ('Defendant'), seeking, inter alia, declarations that the copyright and economic rights, within the meaning of the provisions of the Intellectual Property Act No. 36 of 2003 (hereinafter referred to as the 'IP Act'), in respect of the documents and/or writings and/or works marked 'P2' and 'P3', vest in the Plaintiff. The Plaintiff further sought a declaration that the Defendant had infringed the Plaintiff's intellectual property rights, including his copyright and moral rights in the said works marked 'P2' and 'P3', by composing, producing, and publishing the work marked 'P4' (the book titled “නැන් වෙනුවට ඇන්” published by the Defendant).

The learned Judge of the Provincial High Court of the Western Province, holden in Colombo, exercising Civil and Commercial Jurisdiction (hereinafter referred to as the 'High Court') observed that the Plaintiff's case was that the documents marked 'P2' and 'P3' constituted his unpublished original works, which had been presented to the Central Committee of the Janatha Vimukthi Peramuna ('JVP'). According to the Plaintiff, those documents embodied his personal views and analysis expressed during discussions held

before the Central Committee in the context of the Presidential Election of 2005, particularly concerning the following matters:

- (a) whether the JVP should support the presidential candidate of the Sri Lanka Freedom Party;
- (b) whether the JVP should support the Government to be formed following the election; and
- (c) whether the JVP should participate in the Government to be formed following the election.

The Plaintiff alleged that the Defendant subsequently published the book marked 'P4', incorporating therein portions of the works marked 'P2' and 'P3'. It was contended that the Defendant reproduced substantial parts of those documents in the said publication without the Plaintiff's consent.

Upon conclusion of the trial, the High Court delivered the Judgment on 11 January 2019 in favour of the Plaintiff. Being dissatisfied with the said Judgment, the Defendant preferred the present Appeal to this Court.

At the commencement of the trial, the High Court identified the following issues for determination:

1. Whether the Plaintiff's works marked 'P2' and 'P3' constitute works protected under section 6 of the IP Act.
2. Whether the Plaintiff's works marked 'P2' and 'P3' constitute original works entitled to protection under the copyright law of Sri Lanka.
3. Whether the Plaintiff is entitled to economic and moral rights in respect of the works marked 'P2' and 'P3' in terms of sections 9 and 10 of the IP Act.
4. Whether the Defendant infringed the Plaintiff's protected works marked 'P2' and 'P3' by reproducing the whole or a substantial part thereof without the Plaintiff's consent.
5. Whether the publication of the Defendant's book marked 'P4' constitutes fair use within the meaning of section 11 of the IP Act.

6. Whether the Plaintiff is entitled to recover damages from the Defendant as prayed for in the plaint.

Whether the Plaintiff's work marked 'P2' and 'P3' constitutes works protected under the IP Act and accordingly qualifies as original works protected under the Intellectual Property Law of Sri Lanka

The principal question before the High Court was whether the documents marked 'P2' and 'P3' constituted literary works entitled to copyright protection under Section 6 of the IP Act and, if so, whether such works satisfied the requirement of originality. The Defendant contended that the documents were merely collections of political ideas and opinions, which are excluded from protection under Section 8 of the IP Act, and further argued that they lacked the characteristics ordinarily associated with copyright works. The Plaintiff, however, maintained that the documents were his original written analyses and intellectual creations prepared for presentation to the Central Committee of the JVP and therefore qualified as literary works protected by law.

In resolving this issue, the High Court undertook a comprehensive examination of the concept of a "literary work" and the requirement of originality in copyright law. Relying on established authorities, including *University of London Press v University Tutorial Press* [1916] 2 Ch 601 and *Hollinrake v Truswell* [1894] 3 Ch 420, the Court observed that copyright protection extends broadly to written expressions irrespective of literary merit, artistic quality, or publication. The Court correctly emphasised that copyright protects the expression of ideas rather than the ideas themselves.

Having examined the evidence, the High Court found that the documents 'P2' and 'P3' were authored by the Plaintiff and contained his personal analyses, evaluations, recommendations, and views relating to significant political issues under consideration by the Central Committee. The Court further observed that portions of the documents were written in the Plaintiff's own handwriting and that the Defendant had not disputed the Plaintiff's authorship. The High Court also agreed that the preparation of the documents involved intellectual effort, judgment, and analytical skill. In reaching its determination, the Court drew support from both domestic and foreign authorities, including *Feist Publications Inc. v Rural Telephone Service Co.* 499 U.S. 340 (1991), *Infopaq International*

A/S v Danske Dagblades Forening [2009] FSR 20 (EC), and *CCH Canadian Ltd v Law Society of Upper Canada* [2004] SCC 13, all of which affirm that originality requires the exercise of skill, judgment, and intellectual creativity beyond a purely mechanical exercise.

Accordingly, the High Court concluded that ‘P2’ and ‘P3’ were not mere repositories of political ideas or factual information but constituted original literary works embodying the Plaintiff’s independent intellectual creation. The Court therefore held that the documents satisfied the requirements of Section 6 of the IP Act and were entitled to copyright protection while accordingly qualifying as original works protected under the Intellectual Property Law of Sri Lanka.

Having carefully considered the submissions of learned counsel, the evidence led before the High Court, and the applicable legal principles, I find no basis to interfere with the conclusions reached by the learned High Court Judge. The reasoning of the High Court is firmly grounded in the provisions of the IP Act and is fully supported by both the factual findings and the relevant jurisprudence. The evidence overwhelmingly establishes that the documents marked ‘P2’ and ‘P3’ are original written expressions of the Plaintiff’s intellectual effort, judgment, analysis, and skill, and therefore constitute literary works protected under Section 6 of the Act. The Defendant’s contention that the documents amount merely to unprotectable ideas fails to appreciate the well-established distinction between ideas and their original expression. In my view, the High Court correctly held that copyright subsists in the Plaintiff’s expression of those ideas and that the requirements of originality were amply satisfied. I therefore affirm the findings of the High Court on the above first two issues.

Whether the Plaintiff is entitled to economic and moral rights in respect of the works marked ‘P2’ and ‘P3’ in terms of sections 9 and 10 of the IP Act

The above third issue was whether the Plaintiff was entitled to economic and moral rights in respect of the works marked ‘P2’ and ‘P3’ under Sections 9 and 10 of the IP Act.

The Defendant contended that the High Court had erred in recognising economic rights in favour of the Plaintiff. It was argued that economic rights presuppose the existence of a commercial or economic value that can be exploited for financial gain. According to the Defendant, the documents ‘P2’ and ‘P3’ were prepared solely for internal discussion

within the Central Committee of the JVP and were never intended for publication, sale, or commercial exploitation. The Defendant submitted that the Plaintiff himself had admitted that the documents were created exclusively for internal party deliberations and therefore could not subsequently claim economic rights over them. It was further contended that the Plaintiff had failed to establish any actual economic loss or commercial interest arising from the documents and that any value associated with them arose only after their incorporation into the Defendant's publication marked 'P4'. The Defendant maintained that speculative assertions regarding possible future publication were insufficient to establish the existence of economic rights.

The Defendant further relied on the doctrine of estoppel embodied in Section 115 of the Evidence Ordinance. It was submitted that, by circulating the documents within the Central Committee without asserting ownership, copyright, or any proprietary claim, and by omitting his name from the documents, the Plaintiff had represented that no exclusive rights were reserved. The Defendant argued that members of the Committee, including himself, acted on that understanding and that the Plaintiff was therefore precluded from subsequently asserting copyright-based economic rights.

With regard to moral rights, the Defendant contended that no violation had occurred because the Plaintiff had been acknowledged in the publication marked 'P4'.

The Plaintiff, on the other hand, maintained that as the author and owner of the original literary works 'P2' and 'P3', he was entitled to all rights conferred by the IP Act. It was argued that protection of economic rights arises by the sole fact of creation of a protected work and are not dependent upon actual commercial exploitation or publication. The Plaintiff further asserted that moral rights are vested in him as the author of 'P2' and 'P3' and that the unauthorised reproduction and publication of substantial portions of his unpublished works constituted an infringement of both categories of rights.

In considering these submissions, the High Court observed that Section 9 of the IP Act confers upon the copyright owner exclusive economic rights, including the rights of reproduction, adaptation, translation, communication to the public, broadcasting, and other forms of exploitation. Having already determined that the Plaintiff was the owner of

the copyright in 'P2' and 'P3', the Court held that he was entitled to the full range of economic rights recognised by the IP Act.

The High Court further noted that Section 10 independently confers moral rights upon the author of a work, including the right to claim authorship and the right to object to any distortion, mutilation, modification, or other derogatory treatment of the work prejudicial to the author's honour or reputation. The Court emphasised that moral rights subsist independently of economic rights and remain vested in the author notwithstanding any transfer of economic rights.

The High Court also rejected the Defendant's contention that the documents had previously been published through newspaper articles. (Certain newspaper articles are annexed to the statement of objection of the Defendant filed in the High Court marked as 'D1', 'D1a' to 'D1h'). After examining the statutory definition of "publication", the High Court observed that publication requires a work to be made available to the public with the consent of the copyright owner. The Defendant failed to establish that the Plaintiff had authorised publication of the works or that any substantial part of them had previously entered the public domain. The Plaintiff expressly denied having granted such authority.

Accordingly, the High Court concluded that 'P2' and 'P3' remained unpublished original works protected by copyright. As the author and owner of those works, the Plaintiff was entitled to both the economic rights recognised under Section 9 and the moral rights recognised under Section 10 of the IP Act. The Court therefore held that those rights were capable of being infringed by unauthorised reproduction or publication by the Defendant.

Having considered the submissions of the parties and the findings of the High Court, I find no merit in the Defendant's challenge to the High Court's decision on this issue. The Defendant's argument proceeds on the erroneous assumption that the existence of economic rights depends upon actual or intended commercial exploitation of a work. Based on the circumstances of this Case, such a proposition finds no support in the IP Act. Once a work qualifies for copyright protection and ownership is established, the exclusive economic rights enumerated in Section 9 cannot always be contingent upon publication, sale, profitability, or commercial intention. The fact that 'P2' and 'P3' were prepared for

internal discussion within the Central Committee does not diminish the Plaintiff's statutory rights as author and copyright owner.

Equally, I am unable to accept the Defendant's reliance on estoppel. The mere circulation of an original work within a limited and confidential forum, without an express assertion of copyright, cannot reasonably be construed as a representation that the author has abandoned or waived the proprietary rights conferred by the Act. Copyright protection arises automatically upon creation of the work, and unless exceptional grounds exist, there is no requirement that an author expressly reserve such rights in order to preserve them.

I also agree with the High Court that the Defendant failed to establish prior publication of the works or authorisation by the Plaintiff. The evidence demonstrates that 'P2' and 'P3' remained unpublished works and consequently continued to enjoy the full protection afforded by the Act. As the undisputed author of those works, the Plaintiff was entitled to both the economic rights guaranteed by Section 9 and the moral rights protected by Section 10.

For these reasons, I affirm the findings of the High Court that the Plaintiff is entitled to the economic and moral rights in respect of the works marked 'P2' and 'P3', and the learned High Court Judge has correctly dealt with the above third issue.

Whether the Defendant infringed the Plaintiff's protected works marked 'P2' and 'P3' by reproducing the whole or a substantial part thereof without the Plaintiff's consent.

The above fourth issue was whether the Defendant had infringed the Plaintiff's copyright in the works marked 'P2' and 'P3' by reproducing the whole or a substantial part thereof without the Plaintiff's consent.

The Defendant contended that the publication of the book marked 'P4' did not constitute copyright infringement, as 'P4' was an original and independent literary work embodying his own intellectual effort, research, analysis, and creative expression. It was submitted that the book consisted of 307 pages, the substantial majority of which comprised original material authored by the Defendant, including its title, structure, narrative, analysis, and commentary. It is observed that the core of the publication was contained in pages 13–88 of 'P4' and allegedly represented Defendant's own account of the relevant political events.

The Defendant further argued that the documents corresponding to 'P2' and 'P3' appeared only within a section titled "related documents", which contained a collection of documents authored by several members of the political party and was included merely for purposes of reference and contextual support. It was submitted that the Plaintiff's documents were expressly identified and attributed to him in 'P4', thereby negating any allegation that the Defendant had attempted to appropriate the Plaintiff's work or pass it off as his own.

The Defendant also maintained that the extent of reproduction was not substantial when viewed in the context of the publication as a whole. The reproduced material amounted to approximately forty-three pages out of a total of 307 pages and represented only a limited portion of the overall work. Accordingly, the Defendant argued that 'P4' could not properly be characterised as a reproduction of the Plaintiff's works but remained a distinct and substantially original publication.

The Defendant additionally relied upon admissions recorded before the High Court. It was submitted that Admission No. 4 merely acknowledged that 'P2' and 'P3' had been authored by the Plaintiff and reflected his personal views, but did not amount to an admission that those documents were copyright-protected works. Reliance was also placed upon Admission No. 5, whereby it was acknowledged that 'P4' had been authored by the Defendant. According to the Defendant, that admission confirmed the originality of 'P4' and was inconsistent with a subsequent finding that the same work infringed the Plaintiff's copyright.

The Plaintiff, on the other hand, contended that the Defendant had reproduced and published the entirety of the works 'P2' and 'P3' without his knowledge, consent, or authorisation. It was argued that copyright infringement is established where a protected work is reproduced without the permission of the copyright owner, irrespective of whether the infringing work also contains original material created by the alleged infringer.

In considering these submissions, the High Court examined the contents of 'P4' alongside the documents 'P2' and 'P3'. The Court found that pages 134–156 of 'P4' reproduced the entirety of 'P2', whilst pages 190–211 reproduced the entirety of 'P3'. The Court observed

that the Defendant had not merely referred to, summarised, or quoted limited extracts from the Plaintiff's writings, but had reproduced the complete works in their original form.

The High Court further relied upon admissions made by the Defendant during cross-examination, wherein he acknowledged that the documents 'P2' and 'P3' had been reproduced in full within 'P4'. These admissions, together with the Court's own comparison of the documents, established that the Plaintiff's works had been copied wholesale and incorporated into the Defendant's publication.

Having already determined that 'P2' and 'P3' were original literary works protected by copyright and that the Plaintiff was the owner of the copyright therein, the High Court held that the reproduction of those works without the Plaintiff's consent constituted an infringement of the exclusive right of reproduction guaranteed under Section 9(1)(a) of the IP Act. The High Court therefore concluded that the Defendant's acts of reproducing, publishing, and distributing 'P4' amounted to copyright infringement within the meaning of the IP Act and entitled the Plaintiff to the remedies provided thereunder.

The Defendant's principal argument appears to be that because 'P4', viewed as a whole, contains a substantial amount of original material authored by him, its publication cannot constitute copyright infringement. In my view, this argument misconceives the nature of copyright protection. The existence of original material within an allegedly infringing work does not absolve a person from liability where protected works belonging to another author have been reproduced without authorisation. Copyright infringement is concerned not with the originality of the infringing work as a whole, but with whether a protected work, or a substantial part thereof, has been reproduced in violation of the exclusive rights of the copyright owner.

The evidence before the High Court established, and indeed the Defendant ultimately acknowledged, that the entirety of the works 'P2' and 'P3' had been reproduced within 'P4'. This was not a case involving limited quotations, paraphrasing, or incidental references. Rather, the Plaintiff's original works were incorporated wholesale into the Defendant's publication. Once it is accepted that 'P2' and 'P3' are copyright-protected works and that no consent was obtained from the Plaintiff for their reproduction, the

infringement of the Plaintiff's exclusive right of reproduction under Section 9(1)(a) follows inexorably.

I am also unable to accept the submission that the infringement is mitigated by the fact that the reproduced material constituted only a relatively small percentage of the overall publication. The relevant inquiry is not the proportion of the Plaintiff's work within the Defendant's book, but whether the Plaintiff's protected works themselves were reproduced in whole or in a substantial part. The evidence demonstrates that both works were reproduced in their entirety.

Similarly, the acknowledgement of the Plaintiff as author, while potentially relevant to questions concerning moral rights, cannot operate as a defence to the unauthorised reproduction of copyright-protected works. Attribution does not confer a licence to reproduce another person's work without permission.

Having carefully considered the findings of the High Court and the submissions advanced on behalf of the parties, I find no reason to depart from the conclusions reached by the learned High Court Judge on the above issue. Therefore, I affirm the finding of the High Court that the Defendant reproduced and published the Plaintiff's works 'P2' and 'P3' in their entirety without authorisation and thereby infringed the Plaintiff's copyright. Accordingly, the High Court was correct in deciding the above fourth issue in favour of the Plaintiff.

Whether the Publication of the Defendant's Book 'P4' Falls Within the Fair Use Exception under Section 11 of the IP Act

The fifth issue for determination was whether the publication of the Defendant's book marked 'P4' fell within the fair use exception recognised under Section 11 of the IP Act.

The Defendant contended that, even assuming that the documents marked 'P2' and 'P3' were copyright-protected works, their reproduction in 'P4' was permissible under the statutory fair use exception. It was submitted that Section 11 is framed in broad terms and permits the fair use of copyrighted works for purposes such as criticism, comment, news reporting, teaching, scholarship, and research. According to the Defendant, these

categories are illustrative rather than exhaustive and require a contextual assessment of fairness in each case.

The Defendant maintained that the inclusion of 'P2' and 'P3' in 'P4' was undertaken principally for purposes of criticism, comment, and the reporting of political events. He asserted that the publication was written in response to allegations and criticisms levelled against him within the political party and that the reproduction of the Plaintiff's documents was necessary to explain, analyse, and respond to the views expressed therein. It was further argued that the publication served an important public function by informing the public about significant political developments and enabling citizens to understand the positions adopted by key political actors.

The Defendant also submitted that the inclusion of 'P2' and 'P3' was not motivated by commercial gain. He argued that no evidence had been led to establish that the reproduction of those documents increased sales or generated additional revenue and that the book would have been published regardless of whether those documents were included. He further emphasised that the documents constituted only part of a larger collection of supporting materials reproduced in the publication and were not singled out for any special treatment.

The Defendant additionally relied on the fact that the Plaintiff had been expressly identified as the author of the reproduced documents. According to the Defendant, such attribution demonstrated good faith and transparency and was inconsistent with any intention to misappropriate the Plaintiff's work. Reliance was also placed on judicial authorities, including *Pro Sieben Media AG v Carlton Television Ltd* [1998] EWCA Civ J1217-26, in support of the proposition that criticism of a work need not be limited to criticism of style, and it may also extend to the ideas to be found in a work and its social or moral implications. The Defendant further invoked principles derived from the United States fair use doctrine, contending that the purpose of the use, the nature of the works, the extent of reproduction, and the absence of any adverse market effect supported a finding of fair use. Finally, it was argued that the publication concerned matters of considerable public interest regarding the internal affairs of a major political party and that broader considerations of political transparency and public accountability justified reproducing the documents.

The Plaintiff, on the other hand, maintained that the Defendant had reproduced the entirety of his unpublished works without consent and had sought to commercially exploit them through a publication offered for sale to the public. It was argued that the Defendant's conduct exceeded any legitimate purpose of criticism, comment, or reporting and could not be characterised as fair use within the meaning of Section 11 of the IP Act.

The High Court rejected the Defendant's reliance on the fair use defence. The Court observed that Section 11 requires an objective assessment of fairness, having regard to factors such as the purpose and character of the use, the nature of the copyrighted work, the amount and substantiality of the portion used, and the effect of the use upon the potential market or value of the original work. In this regard, the High Court relied upon the principles articulated in *Hyde Park Residence Ltd v Yelland* [2001] Ch 143 and noted that the ultimate inquiry is whether a fair-minded and honest person would have dealt with the copyrighted material in the manner adopted by the Defendant.

Applying these principles, the High Court found that the Defendant had not reproduced limited extracts necessary for criticism or comment but had reproduced the entirety of the Plaintiff's works. Relying on the observations of Lord Denning in *Hubbard v Vosper* [1972] 2 Q.B. 84, the Court emphasised that the wholesale publication of another person's work without permission cannot ordinarily be regarded as fair dealing. The Court held that even if the documents had circulated within the Central Committee, such circulation could not justify their publication to the public in their entirety.

The High Court further attached significant weight to the commercial character of the publication. The Defendant admitted that the publication had generated profits of approximately Rs. 1.3 million, which were allegedly utilised for the activities of his political party. The Court therefore concluded that the use was commercial in nature and not educational, scholarly, or otherwise non-profit. This consideration weighed heavily against the availability of the fair use defence.

The High Court also observed that the Defendant had reproduced the whole of the Plaintiff's works, amounting to approximately thirty-nine pages of copyrighted material. Relying on *Independent Television Publications Ltd v Time Out Ltd* [1984] FSR 64, the Court observed that where the whole or a substantial part of a copyright work has been taken, a

claim of fair use is unlikely to succeed. Apparently, the Court took the view that the unauthorised publication of the Plaintiff's unpublished works had the potential to impair the Plaintiff's future ability to exploit those works commercially, thereby prejudicing a fundamental interest protected by copyright law.

Accordingly, the High Court concluded that the publication of 'P4' did not fall within the fair use exception under Section 11 of the IP Act and that the Defendant could not rely upon that defence to justify the unauthorised reproduction and publication of the Plaintiff's works.

Having considered the submissions advanced by the parties and the reasoning of the High Court, I find no basis upon which to disturb the learned High Court Judge's conclusion that the Defendant's conduct does not fall within the ambit of the fair use exception contained in Section 11 of the IP Act.

Whilst I accept that criticism, comment, and the reporting of matters of public interest may attract the protection afforded by Section 11, the availability of the defence ultimately depends on whether the use is fair in the particular circumstances of the case. The statutory inquiry is not confined to the purpose asserted by the user but extends to the nature and extent of the material reproduced, the manner in which it was used, and its effect upon the legitimate interests of the copyright owner.

In the instant Case, the evidence establishes that the Defendant did not merely quote or refer to selected passages of the Plaintiff's works for purposes of criticism or comment. Rather, he reproduced the entirety of both 'P2' and 'P3' and disseminated them to the public through a commercial publication. Such wholesale reproduction went well beyond what was reasonably necessary to explain, critique, or respond to the views contained in those documents. The Defendant could readily have achieved his stated objectives through the use of limited extracts or summaries without reproducing the works in full.

I am also unable to accept the submission that attribution alone renders the use fair. Acknowledgement of authorship may be relevant to moral rights, but it does not negate the requirement to obtain permission before reproducing an entire copyright-protected work. Equally, the public interest in political discourse, important though it may be, cannot be invoked as a blanket justification for the unauthorised publication of

unpublished literary works where the statutory requirements of fair use have not been satisfied.

The commercial nature of the publication, the complete reproduction of the Plaintiff's works, and the potential prejudice caused to the Plaintiff's ability to control and exploit his own writings collectively weigh decisively against the availability of the fair use defence. In these circumstances, I am satisfied that the Defendant's use of 'P2' and 'P3' cannot properly be characterised as fair within the meaning of Section 11 of the IP Act.

For these reasons, I affirm the findings of the High Court and hold that the publication of the book marked 'P4' does not fall within the fair use exception provided by Section 11 of the IP Act. The fifth issue has therefore been decided correctly by the High Court in favour of the Plaintiff.

Injunction

The Defendant also challenged the scope of the injunction granted by the High Court, arguing that the injunction restraining publication of the entirety of 'P4' was disproportionate, particularly since the material derived from 'P2' and 'P3' constituted only a small portion of the book. It was submitted that any injunctive relief should have been limited to those specific portions alleged to infringe the Plaintiff's rights.

The Defendant submits that the injunction granted by the learned High Court Judge has created uncertainty and ambiguity regarding the publication of the book marked 'P4'. It is contended that, by granting prayer (c) [the respective English letter can be identified as (g)] of the Plaint, the Court effectively prohibited the publication, sale, distribution, marketing, and promotion of the entirety of 'P4', rather than merely restraining the use of the materials identified as 'P2' and 'P3'.

The Defendant asserts that the intention of the Plaintiff is to purely prevent the publication of the whole book and that this intention is evident from both the interim injunction and the wording of the corresponding prayers in the English Plaint, which expressly refer to the work 'P4' together with the documents 'P2' and 'P3'. The Defendant further points out that while the learned High Court Judge reproduced and reformulated several other prayers in the judgment, the permanent injunction was granted merely by reference to the

aforesaid prayer (g), without expressly setting out its terms. This, it is submitted, reinforces the conclusion that the injunction was intended to operate against the entire publication 'P4'.

Without prejudice to his primary position, the Defendant submits that even if 'P2' and 'P3' are assumed to be copyright-protected works and are found to have been reproduced in 'P4', any restraint should have been limited only to those portions. The Defendant argues that there could be no legal basis for preventing the publication of the remaining parts of 'P4', particularly in circumstances where it is admitted that the Defendant is the author of the book and where the Plaintiff claimed copyright only in the extracts marked 'P2' and 'P3'.

The Defendant further contends that, if any injunction was warranted, it should have been narrowly and clearly drafted to identify the specific material alleged to infringe copyright, rather than imposing a blanket prohibition on the entire publication. The failure to do so has resulted in an overbroad and legally unsustainable order. Accordingly, the Defendant submits that the injunction granted under prayer (g) was intended to restrain the publication of the whole of "P4", that such relief is erroneous in law, misconceived, and untenable, and that the impugned injunction ought to be set aside.

Having considered the scope of the copyright asserted by the Plaintiff and the terms of the injunction granted by the learned High Court Judge, I am of the view that the injunction, as framed, is unduly broad. I have already determined that the extracts marked 'P2' and 'P3' constitute copyright-protected works and that portions thereof were reproduced in the publication marked 'P4'. As such, I take the view that any restraint, in the instant Case, ought properly to have been confined to those specific portions found to be infringing. There is no legal or factual basis for restraining the publication, distribution, or sale of the remaining portions of 'P4', particularly in circumstances where it is admitted that the Defendant is the author of that work and where the Plaintiff's claim to copyright is limited to the extracts marked 'P2' and 'P3'. In those circumstances, an injunction operating to prohibit the publication of the entirety of 'P4' cannot be sustained in law and must be set aside to that extent.

Conclusion

In addition to other findings the High Court, having considered the financial benefits derived from the use of the works, observed that the Defendant had financially benefited from the use of the Plaintiff's works through the publication of the book marked 'P4'. The Court further noted that he had earned a sum of Rs. 1,344,785/-, whereas the Plaintiff was unable to derive any income owing to the unauthorised publication of the works. Accordingly, the High Court held that the Plaintiff was entitled to recover from the Defendant a sum of Rs. 1 million as statutory damages in terms of section 170(10) of the IP Act.

Moreover, by way of a claim in reconvention, the Defendant sought damages in a sum of Rs. 3 million for the alleged prevention of the printing and promotion of the said book marked 'P4', together with a further sum of Rs. 500,000/- per month for the alleged irreparable and continuing loss occasioned by the enjoining order obtained from the Court, which the Defendant claimed had been secured through the suppression and misrepresentation of material facts. In this regard, the High Court held that the Defendant, having infringed the Plaintiff's economic rights through the unauthorised reproduction and publication of the Plaintiff's literary works and thereby prevented the Plaintiff from exploiting his intellectual property rights in those protected works, was not entitled to claim damages from the Plaintiff for obtaining an enjoining order lawfully issued by the Court.

In light of the foregoing reasons, I am not inclined to interfere with the decision of the High Court awarding statutory damages in the sum of Rs. 1 million and further, dismissing the Defendant's claim in reconvention.

In conclusion, I hold, based on my overall findings, that the learned High Court Judge did not err in law in answering Issues Nos. 1 to 12, 13(b), and 14 to 30 framed by the High Court on 09 September 2011. However, in view of my determination regarding the relief sought by the Plaintiff for an injunction, I take the view that Issue No. 13(a), namely *"If one or more or all of Issues Nos. 1 to 12 are determined in favour of the Plaintiff, whether the Plaintiff is entitled to the relief sought in the prayer to the Plaintiff?"*, should be answered as follows:

"Yes. However, the injunction referred to in prayer (g) of the Plaint shall be confined to 'P2' and 'P3', as determined in this Judgement".

Finally, I declare that the injunction granted by the High Court [Vide- paragraph 113(e) of the Judgement of the High Court] should be varied. As such, I proceed to issue an injunction restraining the Defendant including his servants, agents etc and all those acting through and under him from:

- a) further incorporating the documents 'P2' and 'P3' in the work 'P4' and further printing and/or further distributing and/or marketing and/or selling and/or promoting the work 'P4' with such incorporation of 'P2' and 'P3',
- b) engaging in any activity whatever infringing the intellectual property rights of the Plaintiff in any manner whatsoever in relation to the documents 'P2' and 'P3'.

Accordingly, the Appeal is dismissed, subject to the aforesaid variation to the answer given by the High Court to Issue No. 13(a) and the decision on the injunction. I make no order as to costs.

Judge of the Supreme Court

Janak De Silva J.

I agree.

Judge of the Supreme Court

M. Sampath K.B. Wijeratne J.

I agree.

Judge of the Supreme Court